



CONTRACT FOR PAVING MOLALLA AVENUE IS AWARDED

Three Concerns Offer Bids
Oregon Contract Company
Lowest Bidders

WORK TO COST \$8915.02

P. R. L. and P. Company Reminded Of
Failure To Install Lights—Hose
Purchase Is Authorized

At the special meeting of the Oregon City councilmanic fathers, on Monday evening, bids were opened and the contract awarded for the paving of Molalla Avenue to the county line.

The following bids were present: W. D. Andrews Construction Company \$10,258.40; C. H. Rice, \$9432.60; and the Oregon Contract Company, \$8915.02. Councilman Mount's motion to accept the lowest bid and to enter contract accordingly was unanimously carried.

The petition of the merchants to declare July 26, Wednesday this week a legal holiday in honor of the Oregon Retail Grocers annual picnic held in Gladstone Park was passed without discussion.

The mayor suggested a meeting for further discussion of vacating Third street in furtherance of the plan to use Fifth street as a part of the Pacific Highway outlet through the city and the date was set for tonight, Thursday.

The fire committee was authorized to spend money from the fire department fund for the purchase of 500 feet of hose, it having been demonstrated at the recent big fire that more hose is needed.

The recorder was directed to insist on lights ordered long ago being installed, one at Lincoln and Twelfth streets, without further delay.

Among those who signified their intention of attending a meeting with the state highway commission with Shannon, and councilmen Mount, Metzger, reference to the Pacific Highway route through the city were Mayor Bridges, Hodgson.

David Martin Passes

David B. Martin, aged 87 years, died at his home in West Gladstone, Wednesday night. Deceased was a member of the G. A. R. and the Masons. The latter organization will have charge of the funeral services which will be held from the Holman and Pace chapel.

Deceased is survived by his widow, a son residing at Santa Barbara, California and a daughter, Mrs. Maud Ryszynski of Pele's mountain.

Frederick Gerber Laid To Rest

Many friends and relatives gathered at the little church at Logan to pay the last respects to Frederick Gerber on Tuesday morning of this week. The church was filled to the door. The floral offerings were many and beautiful. Rev. A. J. Ware conducted the services. Mrs. W. C. Green and Frank Alldredge sang "Over the River," and "He Knows It All," with Mrs. Gladys Fuge at the organ. Mr. Gerber was an old resident of Logan, a tried and true friend, and a respected citizen.

Mrs. Carl Green entertained the members of the New Thought Club of Portland on Wednesday last week at an all day meetin g at her home at 710 Center Street. A sumptuous dinner was served at one o'clock at which places were laid for 26 ladies. In the afternoon the ladies visited the old historic home of Dr. John McLoughlin. Vocal and instrumental music was enjoyed by all. Among the members attending was Mrs. Jennie Salls, whose husband the Rev. Salls was pastor of the Methodist Church of Oregon City 30 years ago.

Everett Blackburn Surprised

Everett Blackburn was taken completely by surprise when a number of his friends from Oregon City motored to the home of his parents, Mr. and Mrs. C. T. Blackburn, on the Beaver Creek road, the occasion being his birthday. Dancing, music and games were enjoyed until a late hour, when refreshments were served and all departed for home, after a jolly good time.

OAK GROVE DANCE HALL
PROPRIETORS ARRESTED

As a sequel to the claim that they are operating their dance pavilion under corporate law of the state and are not under authority of Clackamas County the usual performance was pulled off on Sunday last and another result was the arrest of Mrs. M. L. Hubbard and Harry Tregaskis proprietors of the place, by Sheriff Wilson. The case is continued to August 4 at

COUNCIL AND HIWAY COMMISSION MEET IN CONFERENCE

Relative Merits Of Proposed Pacific
Highway Through City Stimulate
Warm Discussion

Members of the city council and local business men met with the state highway commission at the Multnomah county courthouse Tuesday afternoon, in an effort to arrive at a final choice for the routing of the Pacific highway through Oregon City.

Councilman H. S. Mount, C. Schuebel, Mayor James Shannon and City Attorney O. D. Eby spoke for the various Oregon City interests concerned in the case while Messrs. R. A. Booth, chairman and John B. Yeon, commissioner, contended for the attitude of the commission.

Mr. Schuebel speaking in favor of the Fifth street route called attention to the fact that the city would be put to an expense of over \$8,000 for construction work in addition to the cost of the necessary condemnation proceedings, in the event that the Seventh street route were chosen. As the city has no funds whatever to cover these expenses a special bond election would have to be called, the successful outcome of which would be very doubtful.

The speaker pointed out that the new Southern Pacific depot will occupy the full 20 foot strip of railroad property which constitutes a large part of the property required for the proposed route, thus leaving the roadway too narrow for public safety or convenience.

The peculiar character of the dedication made by Dr. John McLoughlin was brought out by Mr. Schuebel who declared that this would allow a remembrance to hold up the whole matter indefinitely by reverting the question of dedication to the people, requiring a two thirds vote. He urged the selection of the fifth street route as a safety measure, stressing the close proximity of the municipal elevator to the Seventh street route and also the dangerous cross currents of traffic which would be created at Seventh and Main streets by this routing. He further stated that the city would be able to finance the comparatively slight cost of the Fifth street route, this route necessitating no extensive construction work or condemnation proceedings.

Councilman Mount read a letter from W. P. Hawley, stating that the contributions of the Hawley Pulp and Paper, Southern Pacific company and the Crown-Willamette Paper company, totaling \$70,000, were contingent upon the selection of the Fifth Street route.

F. I. Fuller, vice-president of the P. R. L. & P. Company, the heaviest contributor, stated that his company's portion of the cost would be met regardless of the commission's decision in the matter.

City Attorney O. D. Eby took issue in several instances with Mr. Schuebel pointing out the desirability of the Seventh street route and expressing the belief that this route could be financed.

Mayor James Shannon and Councilman Fred Metzger spoke in favor of the Fifth street route. Mayor Shannon stating that 75 or 80 per cent of the people in Oregon City favored this route.

Chairman R. A. Booth and John B. Yeon of the commission took a definite stand in favor of the Seventh St. route, stating that they believed that this route afforded a greater measure of safety to highway traffic, the factor of safety being in their estimation the most important consideration to be dealt with.

The meeting adjourned with the commission maintaining its original stand for the Seventh street route and with its promise to ascertain the exact attitude of all the corporations on the Fifth street routing. The public service commission will also be consulted by the commission relative to the question of safety as far as the railroad crossings are concerned.

In addition to the above mentioned, were present, Councilmen Hodgson and Bridges, City Recorder, C. W. Kelley, County Commissioners Proctor and Harris, G. Schuebel, William Anderson, L. A. Henderson, Wallace Caulfield, L. O. Harding, Charles Gratke and Fred Tooe, Jr.

Following the executive order declaring that a national emergency exists, Secretary Hoover, chairman of the coal distribution committee has called upon the governor of Oregon and of all the other states to form state organizations to co-operate in the distribution to points of the greatest need.

NEW ENCOURAGEMENT IS OFFERED IN S. P. DEPOT MATTER

Public Service Commission
Will Demand Quick
Action Is Report

DELAY HAS BEEN LONG

Uncertainty Of Pacific Highway Route
Through Oregon City Is Blamed
For Lack Of Action

Oregon City and its trade area are again grasping at the hope that reports to the effect that the Oregon public service commission will soon demand of the Southern Pacific company action in regard to the establishment of improved depot facilities will come speedily true.

It has been more than a year since this matter was brought before the commission and nothing yet definitely accomplished, though property condemnation for stock chutes and unloading facilities is under way.

Attorney Schuebel who has been in consultation with the commission the past week is authority for the statement that the railroad company will very soon be required to proceed.

It develops that the matter has been held in abeyance pending the decision in reference to the route of the Pacific Highway through the city. The company has two plans for the remodeling of the present building at Seventh street and Railroad avenue. One of them is to be used if the route is via Main and Fifth streets, the other if the Seventh street Railroad avenue route is used.

The change reasonably depends upon the route inasmuch as the company owns 20 of the 24 feet to the west from the depot itself to the creamery and the city the remaining 4 feet, while the entire space is only 53 feet in extent from the depot to the Price Brothers store building and will necessitate in case the railroad route is chosen, the condemnation of the property on which the creamery and barber shop buildings now stand. If this route is chosen plans to match conditions will be used by the company. If not then the plans best for the company under the other conditions will be employed. Meanwhile a patient, hopeful and long suffering public just wait—wait and wait still longer.

Local Tennis Fans Will Hold Tournament

The Baraca tennis club of this city will stage a tennis tournament to include four series of games which will run for the better part of a week.

Plans for the tournament which will start Thursday of this week, were completed at a meeting of the club held Tuesday evening.

All who desire to enter the tournament or become affiliated with the club are asked to communicate with Secretary Virgil Yonce at the Huntly-Draper Drug store.

Sue: For Divorce

Edna S. Weismandel filed suit in the circuit court, Tuesday, against John E. Weismandel, well known salesman of this city and who is in the employ of the W. J. Wilson company. She asks for a settlement of \$1,000 immediate alimony, \$25 a month permanent alimony and for \$100 suit money and attorney's fees, together with a one third interest in his personal property which is believed to have a value of several thousand dollars. The couple were married at Vancouver, Washington, November 29, 1920.

OLCOTT SAYS MANY IRREGULARITIES IN VOTING

Omission of Votes from Tally Sheets,
Illegal Registration and Rejection
of Olcott Votes Charged

And now comes candidate Ben W. Olcott with charges of election irregularities that make the attorneys of the honorable Charles Hall sit up and take notice. The fellow "on the fence" can't "foller." It is growing too complicated, so he says "sic'em" and waits results. This does not, however, alter the seriousness of the situation. The highest office within the gift of the people of the state is being dragged about in the depths of political mire and the end of the controversy still afar off and getting farther away at every new turn in the proceedings.

The governor filed an answer and counter complaint on Tuesday this week, and within ten days will file an amendment in which he will set forth additional precincts in which alleged irregularities occurred in Clatsop and other counties. The charges made by Olcott and favoring Hall are. That literature boosting the latter was on the tables in voting rooms; the counting of 100 votes in certain precincts erroneously; ballots counted in excess of the number actually cast; democratic votes counted as republican; omission of votes from tally sheets; registrations not changed according to law; and voting by those not entitled to full citizenship.

PRESIDENT HARDING NOMINATES HAGEMAN DEMOCRAT FOR P. M.

That a "prophet is not with," honor except in his own country," seems to find exception in the case of the Milwaukee postmaster.

Bernard Hageman a staunch democrat and incumbent since 1913, has been endorsed as his own successor, by Democrats and Republicans alike and as a result has been recommended again for the place by President Harding.

Mr. Hageman is generally favored by the patrons of the office and since entering upon his duties as postmaster has helped to boost the office from the third to the second class.

GROCCERS PICNIC IS ONE BIG EVENT FROM START TO FINISH

By Tens, Hundreds, and Thousands
They Swarmed to Chautauqua
Park to Make Merry

A monster crowd of 11,000 people enjoyed the various features of the day's program, including band, music, a minstrel show, dancing and a baseball game which the Oregon City grocers team won from their Portland brethren by a score of 4 to 2.

The sports program in the afternoon disposed of \$1800 in prizes in record time while an abundance of good eats were on hand to pacify the inner man. Delegations from Multnomah, Clackamas, Marion and Yamhill counties united to make the affair a long-to-be-remembered one and present indications point to Gladstone park as the scene of next year's picnic.

Caulfield Home Rejoices

The home of Mr. and Mrs. Raymond Caulfield was gladdened on Wednesday morning, July 9, by the arrival of a little daughter who has been named Cynthia Claire.

Banner-Courier classified ads bring home the bacon.

RAPID PROGRESS IS MADE IN OREGON CITY PAGEANT

Various Organizations Of
City Will Present Salient
Features

EFFORT IS UNIQUE

Portrayals of Progressive Scenes thru
With Attractive Interests Of
Oregon's First Days

The outline portrayal of the pageant in preparation by Mrs. Adah Losh nose is prophetic of an immensely interesting and instructive fete. Its social and historic value will equal its attractiveness.

Scene 1—Portrays Lewis and Clark, Sacajawea, her husband, a colored servant and other men coming up the river met by canoes filled with Indians who fed them by signs and pantomime of the Indians beyond. Presented by members of the Episcopal congregation and by the "Red Men."

Scene 2—Alexander Ross, Astor and men come up the river; Indians shoot arrows at them and start in canoes to attack them. White men fire, killing an Indian and then retreat down the river and return with more men armed, land, fortify their camp and strive to make peace with the red men who finally smoke the "Pipe of Peace." The "Moose and "Red Men" have charge of this scene.

Scene 3—McLaughlin and French Canadians come up the river, singing, and land near the falls, on the way to found Champoux. In charge F. W. Sullivan and others.

Scene 4—Jason Lee and party pass up the river and around the falls. In charge J. E. Church.

Scene 5—Dr. Parke forecasts the future industrial plants of the city. Indian home life and barter of slaves shown. Presbyterian church.

Scene 6—Jason Lee and wife pass the falls; more missionaries of the Methodist faith, land, preach and sing to the Indians. Methodist church.

Scene 7—The first legislature. Commercial Club.

Scene 8—(a) The first hotel arranged under an Arbor. Guests come and go. Musonic orders.

Scene 9—Governor Abernathy welcomes immigrants in wagons. Boundary line between U. S. and Canada settled at first newspaper distributed. Congregational church and others.

Scene 10—Ship arrives with furniture and military. Bonnets bought and sold to the women of the camp.

Scene 11—"Whitman massacre" announced at church service and men rush off to war against the Indians. American Legion.

Scene 12—Captives cared for upon arrival by boat. Woman's Club.

Scene 13—The rush for the California gold fields and Indian life depicted.

Scene 14—The gold seekers return home bringing with them bags of the precious metal.

Scene 15—Joe Lane, the new governor, holds council with the Red men on table rock.

A Grand chorus and Red Fire close the pageant.

Brunfield Must Hang

The state supreme court on Tuesday, in an opinion written by Justice McBride denied a new trial to Dr. R. M. Brunfield, the Roseburg dentist convicted of murder and upheld the sentence of death imposed by the Douglas county circuit court.

NOTICE OF APPEAL IN LIBEL CASE NOW ON FILE

Over Hundred Errors Alleged Suppression
Of Material Evidence
Also Charged

The attorneys for the defendants in the case of Mount vs. Welsh and six other Oregon City physicians have filed notice of appeal and the stay bond with the county clerk for the purpose of taking the case to the supreme court.

It will be recalled by those who have followed the course of events in this case that Dr. Mount brought suit against seven other physicians of Oregon City for \$50,000.00 damages on account of alleged libel arising from a protest against the collection of a \$25 autopsy fee charged by Mount and from a disagreement over the cause of the death of Alexander DeFord who was shot during an unfortunate affair many months ago.

It is understood that the defendants will urge in the appeal 119 reasons why the judgment of the circuit court, Judge Morrow presiding, should be reversed.

In addition to the more than a hundred errors alleged as having occurred during the trial it is understood that stress will be laid on the suppression of the findings of Dr. Menne a noted pathologist which findings were from an autopsy held by him on the body of DeFord at the request of Dr. Mount. In this connection it will be the contention of the defendants that Dr. Menne's findings substantiated their theory that death was from confluent pneumonia instead of from septic peritonitis.

Affidavits of Doctors Ophielis, professor of Pathology at Stanford University and Doctors Joyce, Tucker Elise and Selwood of Portland will be used to sustain the findings of Dr. Menne.

Defendant's Bonds Questioned
Indicating the degree of technical effort, in which the law will be employed in the case the attorney in the plaintiff has objected to the bonds offered by the defendant physicians who are appealing to the supreme court. The bondsmen include Francis Welsh, William Krassig, Linn Jones, Clarence Farr, F. L. Charman, John Meissner and Ruth L. Eaton. They will appear before Judge Campbell for examination, August 1.

Difference Between Batteries Explained

"How does the radio 'A' storage battery differ from the ordinary six volt automobile starting and lighting battery?" This question is asked about as often as any other propounded to the radio equipment dealer who supplies the correct answer: "It has thicker plates and fewer of them per cell," but why this is true he often fails to make clear.

So this inquisitive radio enthusiast hies himself to the nearest battery service man who has a special "A" battery for sale and asks the reason for thicker and fewer plates. Mr. Hilgers local representative of the Willard Battery Company makes this point particularly clear for our readers. "There is a need for a uniform delivery of current at a constant voltage over a long period of time between recharges as it is possible to obtain. The immediate demand for a great flood of current, such as is required in starting a car, is absent here. Thin plates with much exposed plate surface produces the current required for car starting but thick plates give more uniform current over a longer period between recharges and what's more contribute to longer life of the battery."

Mr. and Mrs. H. E. Castle accompanied by the former mother, Mrs. M. E. Castle of Woodburn, motored to Oregon City on Friday last week and were week-end guests of Mrs. Robert Summons, Mrs. M. E. Castle, Mrs. Summons' mother will remain for a longer visit.

NOTICE OF FINAL ACCOUNT

In the County Court of the State of Oregon for the County of Clackamas. In the matter of the Estate of T. W. YOUNGER, deceased.

Notice is hereby given that the undersigned executor of the estate of T. W. Younger, deceased, has filed her Final Account herein and that the 4th day of September, 1922, at the hour of 9:30 o'clock, a. m., in the court room of the County Court in the Court house, Oregon City, Clackamas County, Oregon, have been appointed as the time and place for the hearing of objections to the said Final Accounts and the settlement thereof.

Date of the first publication, the 27th day of July, 1922.

Date of the last publication the 24th day of August, 1922.

Attorney

NANNIE YOUNGER,
Executrix
FREDERICK M. DEMPSEY,
826 N. W. Bank Bldg.,
Portland, Oregon.

FISH BILL IS BASIS OF ACCUSATION OF GRAFT

Master Fish Warden Argues
Against Bill In Voters
Pamphlet

MANY CHARGES MADE

Author Of The Bill Accused Of Admitting
Filing Petition Containing
Illegal Signatures

And just as the public had placed itself in an attitude to listen more or less attentively to the denials of those accused of trying to "sell for a consideration," the interest reduction measure now on file and to go on the ballot at the November election press headlines appear with the information that an attempt quite similar, has been made to kill for another "consideration" the fish measure also on file and to be passed on by the voters this fall.

Carl D. Shoemaker, master fish warden, characterizes the fish measure as a "hold-up," and Frank M. Warren is represented in his published affidavit as asserting in details how G. G. Green of West Linn, the author of the measure, and a former deputy fish warden came to his office on June 24 and in the presence of F. A. Senfort and F. Barker, packers admitted that his only interest in the measure was to obtain what money he could from the gillnetters in initiating it and then from the packers who would want the measure killed.

The affidavit of Mr. Warren further states that the author of the bill stated that he had filed the bill with only a few names in excess of the number required and that of the signatures there were enough that could be shown illegal to invalidate the measure and that he would show the packers how to do it for a consideration of \$10,000.00.

Mr. Senfort in an affidavit supports in general the declaration of the Warren affidavit.

In the voters' pamphlet is an argument against the fish bill by Master Fish Warden Shoemaker, in which he alludes also to the proposal to sell out the petitions to the packers.

Mr. Green has made affidavit, subscribed and sworn to before Mr. Wm. Stone, attorney and notary, in which he declares he refused to sell the petitions even when approached by a representative of the packers. He also corroborates his statement that the charges are without foundation by presenting a receipt from Secretary of State Koser showing that he had filed the petition two days before the alleged offer to "sell" took place and that it had more than the required number of signatures, or 13,312.

Green counters further by charging that Shoemaker misrepresented him and that he had collected a little over \$500 for initiating the measure, which cost him \$1800.

The affair, the sponsor of the bill claims, is staged by representatives of the packing interests to help defeat the bill. He also declares his belief that the master fish warden is subserving the interests of the packers more than the interests of the public.

The K. K. K.'s Will Initiate

The Knights of the Klu Klux Klan of Clackamas County will hold an outdoor initiation of candidates on the baseball field at Gladstone chautauqua park at nine o'clock on Saturday evening this week.

Officers of the Klan assure the public that the bonifide ritual used in the indoor initiatory ceremonies will be used and cordially invite the public to be present.

Mrs. Harry Paddock accompanied by her sons Willis and Hal of Mayfield, Oregon is visiting her sisters, law Misses Jessie and Laura Paddock at Gladstone.

ADMINISTRATOR'S NOTICE

Notice is hereby given that the undersigned has been appointed as administrator of the estate of Richard E. Thompson, deceased, by the County Court of Clackamas County, Oregon. Any and all persons having claims against the estate of said deceased are hereby required to present the same, duly verified as by law required with proper vouchers to me at the office of my attorneys G. B. Dimick and W. L. Mulvey, Room 3 Anderson Building, Oregon City, Oregon, on or before six months from the date of the first publication of this notice.

ELWOOD THOMPSON,
Administrator of the estate of Richard E. Thompson, deceased.

G. B. DIMICK & W. L. MULVEY,
Attorneys for administrator.

